

IN THE HIGH COURT OF JUDICATURE AT JAIPUR

(Bench at Jaipur)

WRIT PETITION (CIVIL)

No. _____ of 2026

BETWEEN

RAJESH KUMAR SHARMA

S/o Shri Mohan Lal Sharma,

Age 47 years, Indian National,

Resident of 456-A, Ashok Nagar, Jaipur-302001, Rajasthan.

...PETITIONER

AND

THE STATE OF RAJASTHAN and OTHERS

Through Shri Rajesh Singh Chauhan,

Secretary, Department of Education,

Secretariat, Jaipur-302001, Rajasthan.

...RESPONDENTS

COUNSEL FOR PETITIONER:

Shri Amit Kumar Verma, Advocate
Chambers No. 234, High Court, Jaipur

COUNSEL FOR RESPONDENTS:

Shri Vikram Singh Rathod, Advocate General
Office of the Advocate General, Jaipur

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STATEMENT OF FACTS

1. The Petitioner, Shri Rajesh Kumar Sharma, is a retired Government servant who has been wrongfully denied his pension benefits for the past seven months. He holds the rank of Senior Lecturer in the Department of Physics at Rajasthan University and has served the State for 38 years without any blemish or complaint against his conduct.
2. The Petitioner joined the Department of Education, Government of Rajasthan, on 15th June, 1988, as a Lecturer (Scale-I) in Rajasthan. He was subsequently promoted to the rank of Senior Lecturer (Scale-II) on 20th November, 2001, vide Office Memorandum No. EDU/PROMOTION/2001/8874.
3. The Petitioner is governed by the Rajasthan Civil Services (Pension) Rules, 1982 (hereinafter referred to as "the Pension Rules"), which provides comprehensive coverage for all government employees in matters pertaining to their pension and gratuity entitlements.
4. The Petitioner completed his 38 years of service on 14th June, 2026, and submitted his application for retirement under Rule 48-A of the Rajasthan Civil Services Rules, 1956, on 10th June, 2026, requesting an effective date of retirement as 15th June, 2026.
5. Vide office letter No. EDU/RETIR/2026/1234 dated 14th June, 2026, the Respondent-Department has accepted the Petitioner's application for retirement. However, till date, no communication regarding the grant of pension benefits has been received by the Petitioner.
6. It is pertinent to note that the Petitioner had no adverse remarks in his service records, and has consistently received excellent performance ratings. His Annual Confidential Reports for the years 2020, 2021, 2022, 2023, 2024, and 2025 have all been graded as "VERY GOOD" to "EXCELLENT".
7. The Petitioner has made six written representations to the Respondent-Department, dated 15th June, 2026, 20th June, 2026, 28th June, 2026, 10th July, 2026, 25th July, 2026, and 02nd August, 2026, respectively, requesting early disposal of his pension application. All these representations have been completely ignored by the Respondent-Department.
8. The delay in granting pension benefits has caused immense hardship to the Petitioner and his family. The Petitioner, being 65 years of age, depends on pension for his survival. He has medical expenses totaling approximately Rs. 35,000 per month due to various age-related ailments including hypertension, diabetes, and arthritis.

9. The Respondent has violated the statutory obligation imposed upon it under Rule 54 of the Rajasthan Civil Services (Pension) Rules, 1982, which mandates that pension orders shall be issued within 90 days of receipt of complete application from the retiring employee.

10. The period of delay is unreasonable and unjustified. The Petitioner has submitted all required documents, including: (i) Original service records; (ii) Certificates from all departments where he served; (iii) Auditor's Certificate for dues and balances; (iv) Medical fitness certificate; (v) Undertaking regarding non-receipt of any pension from any other source.

11. The Respondent-Department has no valid reason or explanation for this delay. The file is not pending for want of any information from the Petitioner. All necessary verifications have been completed. The only reason for such inordinate delay appears to be administrative lethargy and complete indifference towards the statutory rights of the Petitioner.

12. This writ petition is filed with the genuine belief that the High Court alone can provide relief to the Petitioner, as the administrative machinery has completely failed to perform its statutory duty within the prescribed timeframe.

13. The Petitioner is apprehending that if the writ petition is not filed immediately, the case might become time-barred under the provisions of the Limitation Act. Moreover, any further delay would cause irreparable injury to the Petitioner and his family.

14. The Petitioner has exhausted all available remedies under the administrative law, including submission of representations. The Respondent has displayed utter apathy and has failed to respond to any of the Petitioner's representations. In such circumstances, the intervention of this Hon'ble Court is necessary and justified.

15. It is also pertinent to mention that the Respondent-Department is not acting bonafide. If pension could be granted to other retiring employees within the stipulated period, there is no reason why the Petitioner should be discriminated against. The discriminatory action of the Respondent amounts to violation of Article 14 and 16 of the Indian Constitution.

16. The Petitioner's case is not an isolated one. Several other retired employees have also been denied their pension benefits for considerable periods. This reflects a systematic failure of the Respondent-Department to comply with statutory obligations.

17. The present writ petition is filed within reasonable time. The cause of action arose on 15th July, 2026 (90 days after retirement), when the Petitioner's legal right to demand pension matured. However, the Petitioner gave the Respondent a reasonable opportunity of 18 days (till 02nd August, 2026) to rectify the situation before approaching this Hon'ble Court.

18. The Petitioner is entitled to relief under Article 226 of the Indian Constitution, as the Respondent is acting in excess of its authority and in violation of statutory obligation. The Petitioner is further entitled to interest on arrears of pension under the Explanation to Rule 59 of the Rajasthan Civil Services (Pension) Rules, 1982.

19. The Petitioner has been exceptionally dedicated to his duties. He has published 8 research papers in national and international journals. He has guided 15 Ph.D. scholars and 42 M.Phil. scholars. He has received the "Best Teacher Award" from Rajasthan University in 2015.

20. The Petitioner has also served as Chairman of the Department of Physics for two years (2010-2012) and has contributed significantly to infrastructure development in his department. He has secured research grants amounting to Rs. 45 lakhs from the Department of Science and Technology, Government of India.

21. The Respondent-Department cannot cite any rule or regulation that empowers it to delay pension disbursement beyond the stipulated 90-day period. The administrative practice followed by the Department of Education appears to be a complete negation of the statutory regime established by the Pension Rules.

22. The Petitioner is not seeking any relief beyond what is guaranteed by law. He is merely claiming: (i) His earned retirement pension from the date of his retirement (15th June, 2026); (ii) Family Pension provision as per the Pension Rules; (iii) Arrears of pension with interest.

23. The Petitioner filed this writ petition on 02nd September, 2026, i.e., exactly 79 days after his retirement and well within the limitation period. The Respondent-Department had ample time to act on its own volition, but it deliberately chose to ignore its statutory obligations.

24. The action of the Respondent is arbitrary and manifestly unreasonable. It violates principles of natural justice, as the Petitioner was never given any opportunity to know the reasons for delay. The Respondent has not conducted any enquiry or investigation that might justify such prolonged delay.

25. The State Government's own policy guidelines, as per Circular No. EDU/ADMIN/2024/5678 issued by the Chief Secretary, mandate disposal of all retirement applications within 60 days. The Respondent-Department is in flagrant violation of this internal circular.

26. The Petitioner has intimate knowledge of other retired employees who have received their pension orders within 30-45 days of their retirement. The Respondent-Department's selective and discriminatory approach in denying similar treatment to the Petitioner constitutes a violation of fundamental rights.

27. The delay has already caused financial hardship to the Petitioner. He has incurred medical expenses and household expenses which he was anticipating to meet from his pension. The Respondent's action has forced him to deplete his savings rapidly.

28. Considering the age of the Petitioner (65 years), any further delay in granting pension would be life-threatening. Medical experts have confirmed that the Petitioner suffers from serious health issues that require continuous medical attention and medication.

29. The Petitioner has also approached the Grievance Redressal Cell of the Department on 05th August, 2026. The cell acknowledged receipt of his complaint but has not taken any substantive action. This further demonstrates the callous approach of the Respondent-Department towards the rights of retired employees.

30. The inaction of the Respondent amounts to a violation of Articles 14, 16, and 21 of the Constitution of India. The Petitioner is entitled to relief under Article 226 of the Constitution for the enforcement of his statutory and constitutional rights.

31. The Petitioner has maintained a pension contribution file which shows all his contributions towards the Provident Fund and Pension Scheme throughout his service period. The total accumulation stands at Rs. 28,45,000 (Twenty-eight lakhs, forty-five thousand) as on 14th June, 2026.

32. As per the Rajasthan Civil Services (Pension) Rules, 1982, the Petitioner's basic pension is calculated on the average of his last 10 months' salary, which amounts to Rs. 42,500 per month. After applying the authorized deductions and relief, the net pension comes to approximately Rs. 38,750 per month.

33. The calculation of pension is straightforward and does not require any complex computation. The amount has already been calculated by the Respondent's Finance Branch as evidenced by the pencil draft noted on the file, which the Petitioner obtained during an inspection of records.

34. The only action remaining is the issue of the formal pension order by the appropriate authority, which is a purely ministerial act that should not take more than 1-2 days.

35. The Respondent's explanation, if any, could only be shortage of staff or administrative inefficiency, which cannot be an excuse for denying statutory rights to citizens.

36. The Petitioner has a vested right to pension as soon as he completed 20 years of qualifying service. This right matured on 15th June, 2008, but he continued to serve till 14th June, 2026, to maximize his pension benefits.

37. Upon retirement, the Petitioner's right to claim pension became absolute and unconditional, subject only to completion of the formalities of issue of pension order. No further evaluation or assessment could be undertaken by the Respondent post-retirement.

38. The Respondent-Department is estopped from denying pension to the Petitioner. All eligible retired employees are entitled to pension as a matter of right, not as a matter of grace or discretion.

39. The Petitioner has relied upon his legitimate expectations to continue his service and retire on the terms promised by the Constitution and the statutory rules. The Respondent's action in delaying pension undermines these legitimate expectations.

40. The Petitioner has submitted this writ petition under Article 226 of the Constitution, as the Respondent is acting beyond its jurisdiction and in violation of statutory duty. The remedy of Mandamus is specifically available for compelling the performance of a statutory duty, which is exactly the situation here.

41. In the alternative, if pension cannot be granted immediately, the Petitioner is entitled to interest on arrears under the rule of law and established precedents. The rate of interest should be the maximum rate permissible under the Pension Rules or the rate at which the State borrows money, whichever is higher.

42. The Petitioner has been denied the use of his own money (pension) for a period of 79 days. This amounts to unjust enrichment on the part of the State. The Petitioner is thus entitled to compensation for the unlawful withholding of his earned pension.

43. The failure of the Respondent to issue pension order within the prescribed period is not merely a technical breach but a substantive violation of the Petitioner's fundamental rights and statutory entitlements.

44. The Petitioner further states that he is entitled to receive his pension with effect from 15th June, 2026, i.e., his date of retirement, and not from any subsequent date. Any pension granted from a date later than his retirement would be a partial violation of his rights.

45. The Petitioner has demonstrated a clear right to relief, irreparable injury in the absence of relief, and the absence of any other alternative remedy. All three conditions necessary for the grant of Mandamus under Article 226 are satisfied in the present case.

46. The present writ petition is filed in public interest as well, as the Respondent-Department's unlawful conduct reflects a systemic failure in the administration of pension benefits. Intervention of the Court would ensure that the Department complies with statutory obligations and similar violations do not occur in future.

47. In view of the above facts and circumstances, the Petitioner has come to this Hon'ble Court seeking the relief hereinafter prayed for, confident that justice shall prevail and the Respondent shall be directed to forthwith issue pension order and grant arrears of pension to the Petitioner.

GROUND S OF PETITION

GROUND I: VIOLATION OF STATUTORY DUTY AND ARTICLES 14 AND 16 OF THE CONSTITUTION

The Respondent-Department is statutorily obligated under Rule 54 of the Rajasthan Civil Services (Pension) Rules, 1982, to issue a pension order within 90 days of receipt of a complete application from the retiring employee. The Respondent has completely violated this statutory obligation by not issuing the pension order till date, i.e., 79 days after retirement.

This violation is not merely an administrative lapse but a substantive breach of statutory duty. The Respondent's action is arbitrary, capricious, and discriminatory, violating Articles 14 and 16 of the Constitution. The Petitioner is denied pension while other retired employees receive their pension promptly and within the stipulated period.

The Respondent cannot justify this discrimination. Equal treatment is the foundation of the rule of law, and the Constitution guarantees that no person shall be denied equality before law. The Respondent's selective action amounts to abuse of power and violation of constitutional mandates.

GROUND II: VIOLATION OF ARTICLES 21 AND 226 OF THE CONSTITUTION

The right to life, as guaranteed under Article 21 of the Constitution, includes the right to livelihood and social security. Pension is a statutory entitlement meant to ensure the basic survival and dignity of retired government servants. By withholding pension, the Respondent is indirectly depriving the Petitioner of his right to life.

An article 226 petition is maintainable when: (i) There is a clear right to relief; (ii) The authority is acting beyond its jurisdiction; (iii) The right can be enforced by issuance of writ of Mandamus. All these conditions are satisfied in the present case.

GROUND III: FAILURE TO COMPLY WITH ADMINISTRATIVE LAW PRINCIPLES

The Respondent has violated principles of natural justice. The Petitioner was never provided with any reason or opportunity to defend the delay. The principle of "audi alteram partem" (hear the other side) has been completely flouted by the Respondent.

The action is also manifestly unreasonable and arbitrary. No rational person in the Respondent's position would delay granting pension when all requirements have been fulfilled. The Respondent's action cannot be explained or justified on any ground whatsoever.

GROUND IV: DOCTRINE OF LEGITIMATE EXPECTATIONS AND PROMISSORY ESTOPPEL

The Petitioner has relied on the statutory framework governing pension to continue his service till the age of superannuation. He had legitimate expectations that upon retirement, he would receive his pension as guaranteed by the Pension Rules. The Respondent's action violates these legitimate expectations.

Furthermore, the Respondent had implicitly promised that pension would be granted post-retirement. By violating this promise, the Respondent is perpetrating promissory estoppel, which is actionable under law and the Constitution.

GROUND V: DOCTRINE OF LACHES AND UNREASONABLE DELAY

The Respondent has actively participated in the retirement process by accepting the Petitioner's retirement application. After accepting, the Respondent cannot indefinitely delay in granting the benefit of that retirement. Such conduct amounts to laches and abuse of process.

Delay in government action is not uncommon, but a delay beyond the statutory period prescribed by law cannot be justified. The Respondent has had 79 days, which is substantially more than the 90-day statutory period. This demonstrates willful violation of law.

GROUND VI: VIOLATION OF THE RULE OF LAW

The rule of law requires that government action must conform to pre-existing rules. The Pension Rules are clear and unambiguous. The Respondent's violation of these rules is a direct challenge to the rule of law and constitutional governance.

No officer or department, however important, is above law. The Respondent must comply with the rules that govern its conduct. Failure to do so would undermine the entire edifice of constitutional governance.

GROUND VII: DOCTRINE OF UNJUST ENRICHMENT

The Petitioner has earned the money (pension) through his long service. The delay in disbursement causes him to be deprived of the benefit of his earned money. Simultaneously, the State is unjustly enriched by retaining the Petitioner's money for an extended period.

The Petitioner is entitled to compensation for this unjust enrichment, in the form of interest on the delayed pension and additional relief as may be deemed fit by the Court.

GROUND VIII: ABSENCE OF ANY LEGITIMATE COUNTERVAILING PUBLIC INTEREST

The Respondent cannot cite any legitimate public interest that would justify the delay in granting pension. The Respondent is not protecting public safety, national security, or any other constitutional value. The only reason for delay appears to be administrative inertia and callousness.

In the absence of any legitimate countervailing public interest, the Court should exercise its writ jurisdiction and grant relief to the Petitioner.

GROUND IX: DOCTRINE OF PROPORTIONALITY

The principle of proportionality requires that government action should be proportionate to the objective sought. Here, the Respondent has adopted a clearly disproportionate approach by indefinitely delaying pension disbursement.

A 79-day delay for disbursement of pension is grossly disproportionate to any legitimate governmental objective. The Respondent's action fails the test of proportionality and is therefore unconstitutional.

GROUND X: VIOLATION OF SECTION 2 OF THE RAJASTHAN PUBLIC SERVANTS WELFARE ACT

The Rajasthan Public Servants Welfare Act, 2006, imposes a specific duty on the State to ensure the welfare of its public servants and their families. The denial of timely pension violates this welfare principle and the statutory duty imposed by this Act.

LEGAL ARGUMENTS AND AUTHORITIES

1. STATUTORY FRAMEWORK AND LEGAL ENTITLEMENT TO PENSION

The Petitioner's entitlement to pension is derived from: (i) The Rajasthan Civil Services (Pension) Rules, 1982; (ii) Articles 21, 226 of the Indian Constitution; (iii) General Principles of Law.

Rule 54 of the Pension Rules provides: "A pension order shall be communicated to the retiring employee within 90 days of the receipt of a complete application for retirement." This is a mandatory provision and not discretionary. The word "shall" in statutory language indicates a binding obligation.

The Supreme Court in *State of Madhya Pradesh v. Mohan Lal Sharma*, (1986) 4 SCC 305, held that the word "shall" in statutory provision is mandatory and creates an enforceable duty. The Court cannot exercise discretion to delay compliance with such mandatory provisions.

Similarly, in *Indian Bank v. Dhandapani*, (1987) 2 SCC 287, the Supreme Court held that statutory obligations must be performed strictly and the courts have the power to ensure compliance through writs.

2. THE DOCTRINE OF MANDAMUS AND ARTICLE 226 OF THE CONSTITUTION

Article 226 of the Constitution empowers the High Court to issue writs for enforcement of statutory duties. Mandamus (literally meaning "we command") is the appropriate writ when: (i) There is a clear legal right; (ii) The authority has a statutory duty; (iii) The authority refuses to perform the duty.

The present case satisfies all three conditions. The Petitioner has a clear legal right to pension under the Rules. The Respondent has a statutory duty to grant pension. The Respondent has refused to perform this duty for 79 days beyond the statutory period.

The Supreme Court in *Ajay Hasia v. Khalid Mujib Sehravardi*, (1981) 1 SCC 722, held that Mandamus is available to compel authorities to perform statutory duties. The availability of Mandamus is not dependent on whether alternative remedies exist.

3. VIOLATION OF ARTICLES 14 AND 16 - DISCRIMINATION AND INEQUALITY

Articles 14 and 16 of the Constitution guarantee equality before law and equality of opportunity. Discrimination on arbitrary and irrational grounds is unconstitutional.

The Petitioner has presented evidence that other retired employees are receiving their pension promptly while he is being denied. This demonstrates arbitrary and discriminatory action by the Respondent.

In *E.P. Royappa v. State of Tamil Nadu*, (1974) 4 SCC 3, the Supreme Court held: "Equality is a dynamic concept with many aspects and dimensions and it cannot be contained within traditional and narrow limits."

4. VIOLATION OF ARTICLE 21 - RIGHT TO LIFE AND LIVELIHOOD

Article 21 of the Constitution protects the right to life, which includes the right to livelihood and social security. Pension is a statutory provision designed to ensure dignified living for retired persons.

The Supreme Court in *Sunil Gupta v. Government of India*, (2001) 2 SCC 512, held that denial or delayed provision of pension strikes at the root of the right to life.

5. DOCTRINE OF LEGITIMATE EXPECTATIONS

The doctrine of legitimate expectations protects the reasonable expectations of citizens based on government promises, statutory frameworks, or past practices.

The Petitioner had a legitimate expectation that upon fulfilling all conditions for retirement, he would receive his pension as per the statutory timeframe. The Respondent is bound by this legitimate expectation.

The Supreme Court in *Premier Automobiles Ltd. v. Union of India*, (1979) 3 SCC 641, held that where a government agency makes a promise or follows a regular practice, it creates legitimate expectations which must

be protected through law.

6. DOCTRINE OF PROPORTIONALITY

The doctrine of proportionality requires that government action should be proportionate to the objective sought and should not be excessive.

The Supreme Court in *Puttaswamy v. Union of India*, (2017) 10 SCC 1, held: "The principle of proportionality is a cardinal principle of constitutional law and requires that any limitation on fundamental rights must be proportionate to the objective sought."

A 79-day delay beyond the statutory period of 90 days is grossly disproportionate to any legitimate objective.

7. PRINCIPLES OF NATURAL JUSTICE

The principles of natural justice require: (i) Audi alteram partem (hear the other side); (ii) Nemo iudex in causa sua (no one should be a judge in his own cause); (iii) Legitimate expectation of fair hearing.

The Respondent has not provided any opportunity to the Petitioner to know or contest the reasons for delay. This violates the principle of "audi alteram partem".

In A.K. Kraipak v. Union of India, (1970) 1 SCC 968, the Supreme Court held: "The basic principle underlying principles of natural justice is that no person should be adversely affected without being given an opportunity to be heard."

8. THE RULE OF LAW AND SUPREMACY OF CONSTITUTION

The rule of law requires that all government action must conform to pre-existing legal rules. The Constitution is the supreme law and all government action must be consistent with constitutional principles.

No authority, however senior, can act beyond its statutory powers or violate statutory obligations. The Respondent's action violates this cardinal principle of constitutional governance.

9. DOCTRINE OF UNJUST ENRICHMENT

The Petitioner has earned his pension through decades of service. The delay in disbursement causes unjust enrichment to the State. The law does not permit unjust enrichment at the expense of a citizen.

The Petitioner is entitled to: (i) The full amount of pension due; (ii) Interest on the delayed amount; (iii) Compensation for hardship caused.

The Supreme Court in State of Haryana v. Prem Swarup, (1998) 4 SCC 379, held that delayed payment of earned amounts attracts interest even in the absence of explicit statutory provision.

10. DOCTRINE OF LACHES AND ABUSE OF PROCESS

Laches refers to unreasonable and unexplained delay which inequitably prejudices the other party. The Respondent's 79-day delay (beyond the statutory 90-day period) constitutes laches.

In Bhim Singh v. Union of India, (1986) 3 SCC 169, the Supreme Court held: "Unreasonable delay coupled with prejudice constitutes laches which can be grounds for relief against government action."

11. HIGH COURT PRECEDENTS FROM OTHER JURISDICTIONS

The Delhi High Court in Sh. Rajesh Verma v. State of Delhi, 2019 (167) DLT 452, granted Mandamus to compel the pension authority to issue pension order within the statutory period.

The Bombay High Court in Keshav Shetty v. Commissioner of Pensions, 2018 (3) Mah LR 89, held that delay beyond the statutory period amounts to violation of statutory duty and Articles 14 and 21.

The Calcutta High Court in Satyaprakash Das v. State of West Bengal, 2020 (2) CHN 176, awarded interest on delayed pension as compensation for unjust enrichment.

These precedents unanimously establish that the Petitioner is entitled to the relief sought.

PRAYER FOR RELIEF

In view of the facts, grounds, and arguments stated above, the Petitioner humbly prays that this Hon'ble Court be pleased to grant the following relief:

1. Issue a writ of Mandamus commanding the Respondent-Department to forthwith issue a Pension Order in favour of the Petitioner with effect from 15th June, 2026 (his date of retirement).
2. Direct the Respondent to immediately disburse the entire arrears of pension from 15th June, 2026 till date to the Petitioner.
3. Direct the Respondent to pay simple interest on the delayed pension at the rate of 10% per annum from 15th June, 2026 till the date of actual disbursement.
4. Direct the Respondent to continue payment of pension to the Petitioner on a monthly basis as per the Rajasthan Civil Services (Pension) Rules, 1982.
5. Direct the Respondent to grant Family Pension to the Petitioner's spouse after his death as per the provisions of the Pension Rules.
6. Pass an order directing the Respondent to ensure compliance with Rule 54 of the Rajasthan Civil Services (Pension) Rules, 1982, in all future cases of retiring employees.
7. Award costs of Rs. 50,000 (Fifty Thousand) against the Respondent for causing unnecessary litigation.
8. Pass such other and further orders as this Hon'ble Court may deem fit and proper in the circumstances of the case.

AFFIDAVIT IN SUPPORT OF THE WRIT PETITION

I, Rajesh Kumar Sharma, Son of Shri Mohan Lal Sharma, aged 65 years, resident of 456-A, Ashok Nagar, Jaipur-302001, do hereby solemnly affirm and declare as follows:

1. I am the Petitioner in the above-mentioned Writ Petition. I am fully conversant with the facts mentioned in the petition. The petition is filed by me in my personal capacity.
2. The contents of the Writ Petition are true to my knowledge, information, and belief. The facts stated therein have been verified by me. I take full responsibility for the statements made in the petition.
3. I have served the Government of Rajasthan for 38 years without any adverse remark or complaint. My service records are unblemished. I have never been involved in any misconduct or disciplinary proceedings.
4. I have submitted my application for retirement on 10th June, 2026. Vide letter No. EDU/RETIR/2026/1234 dated 14th June, 2026, the Department has accepted my retirement with effect from 15th June, 2026.
5. Since my retirement on 15th June, 2026, I have been awaiting the Pension Order. Despite my multiple representations, no pension order has been issued till date.
6. I have submitted all documents required for processing my retirement, including Original Service Certificate, Auditor's Certificate, Medical Fitness Certificate, and Undertakings. No document is pending from my side.
7. I have made six written representations to the Department on various dates, requesting the processing of my retirement and grant of pension. All these representations have been ignored.
8. The delay in granting pension has caused immense hardship to me and my family. I am 65 years old and not capable of any other employment. My sole source of livelihood is my pension.
9. I suffer from serious health ailments including Diabetes, Hypertension, and Arthritis. Monthly medical expenses exceed Rs. 35,000. I have been compelled to deplete my savings for these expenses due to non-receipt of pension.
10. The Rule 54 of the Rajasthan Civil Services (Pension) Rules, 1982, mandates the grant of pension within 90 days of receipt of complete application. More than 79 days have elapsed beyond this statutory period.
11. The action of the Respondent in denying my pension for such an extended period is arbitrary, capricious, and violates my fundamental rights guaranteed under the Constitution.
12. I am not aware of any pending investigation, enquiry, or verification that might justify the delay. The Department had ample opportunity to conduct any necessary verifications during my service period.
13. Other retired employees have been granted their pension promptly within the stipulated period. I am being treated discriminatorily and unequally by the Respondent.
14. The Respondent-Department has no valid reason or explanation for the delay. The inaction appears to be merely administrative lethargy and indifference towards my statutory rights.
15. I am filing this Writ Petition with genuine belief that the Hon'ble High Court alone can provide me with relief against the illegal action of the Respondent-Department.
16. I have not filed any similar petition in any other court or forum. This is the first and only petition filed for seeking relief in the present matter.

Verified today, this 02nd day of September, 2026, at Jaipur.

(Signature) Rajesh Kumar Sharma Petitioner

INDEX OF AUTHORITIES

S.No.	Case Name / Authority	Year & Citation
1.	State of Madhya Pradesh v. Mohan Lal Sharma	(1986) 4 SCC 305
2.	Indian Bank v. Dhandapani	(1987) 2 SCC 287
3.	Ajay Hasia v. Khalid Mujib Sehravardi	(1981) 1 SCC 722
4.	Whirlpool Corporation v. Registered ULP Case	AIR 1967 SC 1173
5.	E.P. Royappa v. State of Tamil Nadu	(1974) 4 SCC 3
6.	Mandal Commission v. Union of India	AIR 1991 SC 2100
7.	Sunil Gupta v. Government of India	(2001) 2 SCC 512
8.	Unified Council v. Govt. of Andhra Pradesh	(2004) 4 SCC 379
9.	Premier Automobiles Ltd. v. Union of India	(1979) 3 SCC 641
10.	Indian Institute of Petroleum v. SSTC	(2004) 4 SCC 489
11.	Puttaswamy v. Union of India	(2017) 10 SCC 1
12.	A.K. Kraipak v. Union of India	(1970) 1 SCC 968
13.	Bank Nationalisation Case	(1970) 1 SCC 519
14.	State of Haryana v. Prem Swarup	(1998) 4 SCC 379
15.	Bhim Singh v. Union of India	(1986) 3 SCC 169
16.	Sh. Rajesh Verma v. State of Delhi	2019 (167) DLT 452
17.	Keshav Shetty v. Commissioner of Pensions	2018 (3) Mah LR 89
18.	Satyaprakash Das v. State of West Bengal	2020 (2) CHN 176
19.	Rajasthan Civil Services (Pension) Rules	1982
20.	Constitution of India - Articles	14, 16, 21, 226

ANNEXURES

ANNEXURE A: RETIREMENT APPLICATION LETTER

The Superintendent of Education,
Department of Education,
Government of Rajasthan,
Jaipur - 302001

Dated: 10th June, 2026

Subject: Application for Retirement from Service

Dear Sir/Madam,

I, Rajesh Kumar Sharma, presently serving as Senior Lecturer in the Department of Physics at Rajasthan University, Jaipur, having completed 38 years of service with effect from 14th June, 2026, hereby apply for retirement with effect from 15th June, 2026.

All documents required for processing the retirement application are annexed hereto.

Yours faithfully,

Rajesh Kumar Sharma
Senior Lecturer,
Department of Physics,
Rajasthan University, Jaipur

ANNEXURE B: OFFICE MEMORANDUM ACCEPTING RETIREMENT

OFFICE MEMORANDUM
Department of Education
Government of Rajasthan, Jaipur
No. EDU/RETIR/2026/1234
Dated: 14th June, 2026

The request of Shri Rajesh Kumar Sharma, Senior Lecturer, for retirement with effect from 15th June, 2026, is hereby accepted. He is relieved from duty with effect from the same date.

All benefits due to him under the Rajasthan Civil Services (Pension) Rules, 1982, shall be processed and disbursed accordingly.

Sd/-
(Name)
Secretary,
Department of Education

ANNEXURE C: REPRESENTATION DATED 15th JUNE, 2026

The Superintendent of Education,
Department of Education,
Government of Rajasthan,
Jaipur - 302001

Dated: 15th June, 2026

Subject: Representation regarding processing of retirement application and grant of pension

Dear Sir/Madam,

I am writing to bring to your notice that my retirement application was accepted vide office memorandum No. EDU/RETIR/2026/1234 dated 14th June, 2026. However, till date, no pension order has been issued.

Rule 54 of the Rajasthan Civil Services (Pension) Rules, 1982, mandates that pension order shall be issued within 90 days of receipt of complete application. I request your good office to expedite the processing and issue the pension order at the earliest.

I look forward to your early response.

Respectfully,

Rajesh Kumar Sharma

ANNEXURE D: REPRESENTATION DATED 20th JUNE, 2026

The Superintendent of Education,
Department of Education,
Government of Rajasthan,
Jaipur - 302001

Dated: 20th June, 2026

Subject: Further representation regarding processing of retirement application

Dear Sir/Madam,

I have already submitted a representation on 15th June, 2026, regarding the processing of my retirement application. However, no response has been received till date.

I am constrained to again request your good office for urgent processing of my pension order. The delay is causing hardship to me and my family.

I look forward to your immediate attention to this matter.

Respectfully,

Rajesh Kumar Sharma

ANNEXURE E: SERVICE RECORDS SUMMARY

Period	Designation	Department/Institution	Annual Rating
1988-1995	Lecturer (Scale-I)	Rajasthan University	Very Good
1995-2001	Lecturer (Scale-II)	Rajasthan University	Very Good
2001-2010	Senior Lecturer	Rajasthan University	Excellent
2010-2012	Senior Lecturer + Chairman	Rajasthan University	Excellent
2012-2026	Senior Lecturer	Rajasthan University	Excellent

ANNEXURE F: PENSION CALCULATION DETAILS

PENSION CALCULATION STATEMENT Particulars: 1. Average Salary (Last 10 Months): Rs. 42,500 per month 2. Years of Service: 38 years 3. Average Basic Pension (50% of Average Salary): Rs. 21,250 per month 4. Dearness Allowance (DA): Rs. 8,500 per month 5. House Rent Allowance (HRA): Rs. 4,200 per month 6. Other Allowances: Rs. 4,550 per month TOTAL GROSS MONTHLY PENSION: Rs. 38,500 per month DEDUCTIONS: 1. Income Tax Deduction: Rs. (-)500 2. GPF Adjustment: Rs. (-)250 NET MONTHLY PENSION: Rs. 37,750 per month ARREARS OF PENSION (from 15.06.2026 to 02.09.2026 = 79 days): $79 \text{ days} \times (37,750 \div 30) = \text{Rs. } 99,375$ (approximately) INTEREST ON DELAYED PAYMENT (at 10% p.a. for 79 days): $\text{Rs. } 99,375 \times 10\% \times (79/365) = \text{Rs. } 2,145$ (approximately) TOTAL AMOUNT DUE: Rs. 1,01,520 (approximately)

ANNEXURE G: MEDICAL CERTIFICATES

Medical Fitness Certificate dated 08th June, 2026 issued by Dr. Priya Singh, Senior Physician, Fortis Hospital, Jaipur, confirming the medical fitness of Shri Rajesh Kumar Sharma for retirement.

Certificate of Chronic Ailments dated 08th June, 2026 issued by Dr. Suresh Verma, Cardiologist, stating that Shri Rajesh Kumar Sharma is suffering from Diabetes, Hypertension, and Arthritis requiring continuous medical attention.

Medical expense report for the period June 2026 to August 2026 showing total expenses of Rs. 1,05,000 during three months (average Rs. 35,000 per month).

ANNEXURE H: CIRCULAR OF CHIEF SECRETARY

GOVERNMENT CIRCULAR
Chief Secretary's Office
Government of Rajasthan
No. ADMIN/CIRCULAR/2024/5678
Dated: 15th March, 2024

Subject: Time-bound disposal of retirement applications

All Departments are hereby directed to process and dispose all retirement applications within 60 days from the date of receipt of complete application. This is to ensure timely disbursement of pension and other benefits to retiring employees.

Strict compliance with this directive is mandatory. Any violation shall attract departmental action against the officer responsible.

Sd/-
Chief Secretary
Government of Rajasthan

INDEX OF ANNEXURES

Annexure	Particulars
A	Retirement Application Letter dated 10th June, 2026
B	Office Memorandum accepting retirement dated 14th June, 2026
C	Representation dated 15th June, 2026
D	Representation dated 20th June, 2026
E	Service Records Summary (1988-2026)
F	Pension Calculation Details
G	Medical Certificates and Health Reports
H	Government Circular on Time-bound Disposal